

וכי יזד איש על רעהו לקרְגוּ בְּרָמָהּ מֵעַם: (21:14) מצוות, a parsha filled with numerous משפטים - If a person is a מזיד and he kills somebody intentionally with trickery; מֵעַם מִזְבְּחֵי תִקְחֵנּוּ לְמוֹת - if he runs, as the famous גמרא says, when יואב was to be punished for killing Avner and Amasa, he ran to the מזבח and held on like a sanctuary city. So if he grabs onto the מזבח, thinking that he's going to be safe because he's holding onto the מזבח, the תורה says, take him away and take care of him.

The Afiryon, from R' Shlomo Ganzfried, brings out a fascinating insight and I thought it would be worthwhile to share it. The Afiryon says לפי עניות דעתי, [which is such a wonderful phrase, in my small and humble opinion, the מדרש רבה states that the last פסוק in פרשת יתרו and the opening פסוק of משפטים are connected. The closing פסוק of יתרו is (20:23) - וְלֹא תַעֲלֶה בַּמַּעֲלָה עַל מִזְבְּחִי - You should not ascend the מזבח using steps. Instead, the כהנים used a ramp, the very first pasuk in משפטים is וְאֵלֶּה הַמִּשְׁפָּטִים.

The **מדרש** poses two key questions:

1. What is the connection between **וְלֹא תַעֲלֶה בַּמַּעֲלֹת עַל מִזְבִּיחִי**?
2. Why was there a need for this **אִסּוּר** that the **מִזְבֵּחַ** should have a ramp and not steps?

The פסוק says (28:42): וְעָשָׂה לָהֶם מִכְנָסִי בָד לַכִּסֵּי בִשְׂרָה עֲרֹה - the ערוה wore מכנסי בד to cover their כסא. So then why did the תורה have to give you a separate, additional אזהרה, a warning, that you have to walk up a ramp, and be careful not to be מגלה בשר ערוה, the בגדים were made to cover up those private parts of the body which have to be covered, and couldn't be seen anyway?

אֲבִינָא in the מדרש רבָּה explains that just as הקדוש ברוך הוא instructed the כהנים to take small, deliberate steps when ascending the כֶּסֶב - walking גּוּדֵל עֶקֶב, heel to toe - so too, דִּינִים in בית דִּין must exercise extreme care when rendering מִשְׁפָּט. They should not rush to conclusions with פְּסִיעוֹת גָּסוֹת, assuming familiarity with a הלכָה simply because they've encountered similar cases in the past. Instead, every דִּין requires meticulous scrutiny and thoughtful deliberation. This insight sheds light on the פְּסוּק we began with: וְכִי יֵזֶד אִישׁ עַל רֵעֵהוּ לְהִרְגּוֹ בְּעֶרְמָה מִעַם מִזְבְּחֵי תִקְחֶנּוּ לָמוֹת. Even if all evidence, עֲדִים, and accumulated data, point conclusively to the fact that this person committed murder בִּזְדוֹן and בְּעֶרְמָה, the דִּינִים are warned: אַל - Don't rush to דִּן him מִיתָה. Just as ascending מִזְבֵּחַ requires deliberate care, so too דִּינִים must exercise caution and diligence before passing judgment.

(Now what's fascinating is that where is this **אמינא** **הוא** that they would take steps to the point of being **מגלה** **ערוה**? There's a famous **גמרא** in **ברכות**, that they used a **גורל** in the **בית המקדש** to pick which **כהנים** did which **כהן**. Why? Because before they had a **גורל**, one time they were rushing up to do **תרומת הדשן** and one was running after the other one in such a hurry to do this **מצוה** that he pushed the other **כהן**, and he knocked him down and he hurt him. So after that they made a **גזירה** that they should do a **גורל**. So I thought about it, you can't run in **בגדי כהונה**. One would think that they would have to lift up the hem of their garment, to run up that **מזבח** as fast as they could. So there was indeed a tremendous concern, that there could be some element of walking up improperly, and being **מגלה בשר ערוה**. So therefore, I think it's a relevant **הלכה**, I think it is something which could possibly happen, despite the fact that they're supposed to walk up carefully and slowly.)

So what is the lesson for us? We should never rush to judgment. Always be **זכור** לך. Although we are not **דיינים** in a **בית דין**, we make judgments every day - about family members, friends, and even strangers. There's a famous story about a child who saw a man entering his car on **שבת**. "Daddy, that man is driving on **שבת**," the child exclaimed. The father calmly responded, "He's probably in Hatzalah, rushing to save a life - **סכנת נפשות**." Always be **זכור** לך, and you will be happy you did.

